

Munna Lal Umar v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 6 October 2020 · WRIT - C No. 12981 of 2020 · **Writ disposed of; petitioner relegated to Clause 7.10 Supply Code.**

HEADNOTE

After Purvanchal Vidyut Nigam Limited decided the consumer's objection, the Allahabad High Court declined to examine disputed questions of fact under Article 226 and disposed of the writ, leaving a still-aggrieved petitioner to the alternative remedy under Clause 7.10 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Munna Lal Umar filed Writ-C No. 12981 of 2020 against the State of Uttar Pradesh and later impleaded Purvanchal Vidyut Nigam Limited. The matter was listed for correction of parties, instructions, and then adjourned at the electricity department's request. On 6 October 2020, counsel for the Corporation told the Court that the petitioner's objection had been decided and handed over a copy of that decision, which was taken on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternate remedy — CGRF/Ombudsman after objection decided

HOLDING

Where the licensee has already decided the consumer's objection, disputed questions of fact cannot be entertained in writ jurisdiction under Article 226; a still-aggrieved consumer may avail the alternative remedy under Clause 7.10 of the Electricity Supply Code, 2005. The writ petition was disposed of on that footing. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Court relegated the petitioner, after the Corporation decided the objection, to Clause 7.10 rather than deciding disputed billing facts in the writ. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 Clause 7.10 of the 2005 Supply Code was treated as the available statutory forum if the consumer remained aggrieved by the Corporation's decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S OBJECTION AND OF THE CORPORATION'S DECISION ON IT

Court held that disputed questions of fact could not be examined under Article 226 and pointed the petitioner to Clause 7.10. ¶ 1